



Notification Waiver Determination

Coles – substation in Yarrowonga VIC

Acquisition	Coles Group Property Developments Ltd (CGPD) applied for a notification waiver in respect of its proposed acquisition of a parcel of land at (Res 2) Frank Drive, Yarrowonga VIC (target land) from Powercor Australia Ltd (Powercor), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 May 2026

Parties to the Acquisition	The acquirer, CGPD, is a property development arm of Coles Group Limited (Coles). Coles is an Australian public company (ASX:COL) that primarily operates supermarkets and liquor stores. CGPD buys land and constructs shopping centres, supermarkets and liquor outlets to then sell to third party buyers. The vendor, Powercor, is the electricity distribution company responsible for electricity distribution in the Yarrowonga area. The target land is located in Yarrowonga, VIC and is currently used as an electricity substation. The target land is adjacent to a new Coles supermarket and Liquorland store being opened at Kaiela Business Park, 14 Frank Drive, Yarrowonga VIC 3730 (Coles Yarrowonga). The target land would be used to provide Coles Yarrowonga with a permanent electricity supply.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the target land is not currently used for grocery retailing and will be used to supply permanent electricity to Coles Yarrowonga b. Coles does not have an existing supermarket or liquor store in Yarrowonga

	c. there are alternative grocery retailers, including Woolworths, Aldi and IGA, and retail suppliers of packaged liquor for offsite consumption in the local area. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC does however observe that the targeted notification requirements for supermarkets determined under section 51ABQ(1) are likely to apply. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act